

MASTER SERVICE AGREEMENT

THIS AGREEMENT ("Agreement") is made and executed at Pune on this 1st day of September, 2026.

BY AND BETWEEN

Ashwin Traders Private Limited, a private limited company having Corporate Identity Number (CIN) U74999MH2015PTC123456 incorporated under the provisions of the Companies Act, 2013 (hereinafter referred to as the "Client", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the First Part;

AND

Kesari Systems LLP, a Limited Liability Partnership duly registered under the provisions of the Limited Liability Partnership Act, 2008 (hereinafter referred to as the "Service Provider", which expression shall, unless repugnant to the context or meaning thereof, include its successors and permitted assigns) of the Second Part.

The Client and the Service Provider are hereinafter collectively referred to as the "Parties" and individually as a "Party".

a. WHEREAS, the Parties intend to enter into a legally binding arrangement in relation to application support, managed operations and release management across statements of work;

b. AND WHEREAS, the Parties desire to record the terms and conditions governing their respective rights, obligations, responsibilities, and risk allocation in a formal written instrument; and

c. AND WHEREAS, the transaction contemplated herein is intended for a lawful object and lawful consideration under applicable Indian law;

NOW, THEREFORE, in consideration of the mutual covenants and undertakings contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. Purpose of Agreement

The purpose of this Agreement is to set out the terms on which the Client engages the Service Provider to perform the agreed services and associated deliverables described in this Agreement.

2. Definitions

In this Agreement, unless the context otherwise requires, the following expressions shall have the meanings set out below, and cognate expressions shall be construed accordingly:

2.1 "Agreement" means this Agreement together with its schedules, annexures, written amendments, and other documents expressly incorporated by reference.

- 2.2 "Effective Date" means 1 September 2026.
- 2.3 "Services" means application support, managed operations and release management across statements of work.
- 2.4 "Affiliate" means in relation to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with that Party, where "control" means the ownership of more than fifty percent (50%) of the voting securities of an entity, or the power to direct its management and policies, whether through ownership of voting securities, by contract, or otherwise.
- 2.5 "Applicable Law" means all statutes, enactments, ordinances, rules, regulations, notifications, circulars, guidelines, policies, directions, judgments, decrees, and orders of any Government Authority having the force of law in India, as in force from time to time and as amended, consolidated, re-enacted, or replaced.
- 2.6 "Business Day" means a day other than a Saturday, a Sunday, or a day declared to be a public holiday under the Negotiable Instruments Act, 1881 in the State in which this Agreement is executed, on which scheduled commercial banks are open for normal banking business in that State.
- 2.7 "Force Majeure Event" means any event or circumstance beyond the reasonable control of the affected Party which prevents or materially impedes the performance of its obligations, including act of God, fire, flood, earthquake, cyclone, epidemic, pandemic, lockdown or other restriction imposed by order of a Government Authority, war, hostilities, act of terrorism, riot, civil commotion, strike or other industrial action not confined to the affected Party's own workforce, failure of public utilities or telecommunications infrastructure, and any change in Applicable Law that renders performance unlawful.
- 2.8 "Term" means the period commencing on the Effective Date and continuing until this Agreement expires or is terminated in accordance with its terms.
- 2.9 "Confidential Information" means all non-public, proprietary, commercially sensitive, technical, financial, business, strategic, operational, customer, vendor, and personnel information disclosed by or on behalf of a Party, in oral, written, visual, digital, or any other form, whether or not marked as confidential, which is designated as confidential or which by its nature ought reasonably to be regarded as confidential, together with all copies, notes, analyses, and derivative materials containing or derived from it.
- 2.10 "Personal Data" means any data about an individual who is identifiable by or in relation to such data, within the meaning of the Digital Personal Data Protection Act, 2023.

A term defined in this clause bears that meaning wherever it appears in this Agreement in capitalised form, including in the recitals, the schedules, and any annexure, unless the context otherwise requires.

3. Interpretation

In this Agreement, unless the context otherwise requires:

- 3.1 Headings and titles are inserted for convenience only and shall not affect interpretation.
- 3.2 Words importing the singular include the plural and vice versa, and words importing a gender include every gender.
- 3.3 The words "including", "includes", and similar expressions shall be construed as illustrative and not exhaustive.
- 3.4 References to any law, statute, rule, regulation, or governmental direction include all amendments, consolidations, re-enactments, and subordinate legislation made thereunder from time to time.
- 3.5 Any schedule, annexure, appendix, or statement expressly incorporated into this Agreement shall form part of this Agreement, and in the event of inconsistency, the more specific commercial or technical provision shall prevail over the more general provision to the extent of that inconsistency.

4. Relationship of Parties

The Parties acknowledge and agree that the relationship created by this Agreement is that of independent contracting parties and not of employer and employee, partnership, joint venture, agency, or fiduciary relationship.

- 4.1 Neither Party shall hold itself out as having authority to bind the other, and neither Party shall incur any obligation, liability, or expense on behalf of the other, without that other Party's prior written authority.
- 4.2 Each Party shall be solely responsible for the wages, statutory benefits, provident fund, gratuity, and social security contributions of its own personnel, and for its own taxes, duties, returns, and statutory filings arising in connection with this Agreement.
- 4.3 The personnel deployed by a Party shall at all times remain under that Party's direction, supervision, and control, and shall not be treated as employees or workmen of the other Party for the purposes of any labour, industrial, or social-security legislation.
- 4.4 Each Party shall indemnify the other against any claim, demand, or proceeding brought by its own personnel, or by any authority on their behalf, which asserts an employment or engagement relationship with that other Party.

5. Service Payment Terms

In consideration of the Services rendered under this Agreement, the Client shall pay the Service Provider fees of Rs. 5,00,000 (Rupees Five Lakh Only). Payment shall be made in accordance with the following payment terms: Charges per Statement of Work, net 30 days from a valid tax invoice. All invoices shall be raised in Indian Rupees as valid GST-compliant tax invoices and shall specify the invoice date, description of the relevant

services or deliverables, taxable value, applicable GST amount, and place of supply. In the event of delayed payment beyond the agreed due date, the Service Provider shall be entitled to charge simple interest at the rate of eighteen percent (18%) per annum on the outstanding amount from the due date until the date of actual payment. All payments shall be made by electronic transfer to the bank account designated by the Service Provider in writing.

6. Services Not Expressly Described

Where a service, function or responsibility is not expressly described in this Agreement or in a Statement of Work but is reasonably necessary for the proper performance of the Services, it shall be treated as included within the Services and shall be performed at no additional charge, to the same extent and in the same manner as if it had been expressly described. This Clause does not oblige the Service Provider to absorb a material increase in its costs: where the Service Provider considers that performing such a service would materially increase its costs, it shall notify the Client in writing before incurring them and the Parties shall deal with the matter under the change procedure. A failure to give that notice before incurring the costs waives any claim to be paid for them.

7. Service Level Agreement

The Service Provider shall meet the following service levels and performance standards under this Agreement: the service levels expressly recorded in this Agreement. If the Service Provider fails to meet a material service level, the Client shall be entitled to require a remediation plan, reasonable corrective action, and such service credits or other contractual remedies as are expressly stated in this Agreement. The Service Provider shall also provide timely performance reporting reasonably necessary to verify compliance with these service levels.

8. Key Personnel and Resources

The individuals identified as key personnel in a Statement of Work shall be assigned to the Services for the period it states, and the Service Provider shall not remove or reassign any of them except on death, illness, resignation, dismissal or the Client's written consent. Where a key person must be replaced, the Service Provider shall propose a replacement of at least equivalent skill and experience, shall give the Client a reasonable opportunity to object on reasonable grounds, and shall bear the cost of familiarising the replacement. The Service Provider shall at all times deploy sufficient personnel of suitable training and experience to perform the Services, and shall provide the facilities and equipment necessary to do so unless a Statement of Work places that responsibility on the Client. Personnel deployed by the Service Provider remain its employees or contractors for all purposes, and it alone is responsible for their wages, statutory contributions and supervision.

9. Scope of Services

The Service Provider shall provide the following services under this Agreement: Application support, managed operations and release management across statements of work.

The Service Provider shall perform the services with reasonable skill, care, and diligence, in accordance with the scope described above and with the standard of skill and care reasonably expected of a competent provider of comparable services. Any material expansion or variation of the service scope, timeline, or output expectations shall require prior written agreement between the Parties, including any corresponding commercial adjustment where applicable.

10. Statements of Work

The Parties may from time to time execute one or more statements of work under this Agreement (each, a 'Statement of Work' or 'SOW'). Each SOW shall describe the services to be performed, including Application support, managed operations and release management across statements of work. , and shall specify the scope, deliverables, timelines, fees, invoicing schedule, acceptance criteria, and any service levels applicable to that engagement. Each SOW shall be executed in writing by authorised representatives of both Parties and shall, upon execution, be deemed incorporated into and governed by the terms of this Agreement. No SOW shall be effective unless it expressly references this Agreement. Each SOW constitutes a separate contract between the Parties, and termination or expiry of one SOW shall not, of itself, affect any other SOW then in force. Changes to an executed SOW shall be made only through a written change order signed by both Parties.

11. Order of Precedence

In the event of any conflict or inconsistency between the terms of this Agreement and the terms of any Statement of Work, the terms of this Agreement shall prevail, except where the Statement of Work expressly identifies the specific clause of this Agreement that it intends to vary and states that it takes precedence, in which case the variation shall apply solely to that Statement of Work. In the event of any conflict between a Statement of Work and any purchase order, invoice, or other administrative document, the Statement of Work shall prevail. Pre-printed or standard terms appearing on either Party's purchase orders, acknowledgements, or invoices shall have no legal effect.

12. Subcontracting

The Service Provider shall not subcontract the whole or any part of the Services without the Client's prior written consent, which shall not be unreasonably withheld where the proposed subcontractor is competent and willing to be bound by terms no less protective than these. Consent is not required for the use of the Service Provider's own affiliates, of which the Service Provider shall give the Client not less than thirty (30) days' written notice. The Service Provider shall satisfy itself of the suitability of every subcontractor before engaging it, and shall procure that each is bound in writing to the obligations of

confidentiality, data protection and compliance with law set out in this Agreement. Subcontracting does not transfer any obligation: the Service Provider remains liable to the Client for the acts and omissions of every subcontractor as though they were its own, and nothing in a subcontract creates any contractual relationship between the Client and the subcontractor or any obligation on the Client to pay it.

13. Client Dependencies

The Client shall provide, in good time, the access, information, decisions, facilities, systems and personnel that this Agreement or a Statement of Work identifies as the Client's responsibility, and any other cooperation the Service Provider reasonably requires and requests in writing in order to perform. A failure by the Client to do so is not of itself a breach of this Agreement; but to the extent and for so long as it actually prevents or impairs performance, the Service Provider is relieved from the affected obligation, from any service level measured against it and from liability for the resulting delay, provided the Service Provider:

13.1 Notifies the Client in writing promptly on becoming aware.

13.2 Continues to perform everything unaffected.

13.3 Takes reasonable steps to mitigate.

Anything not identified as the Client's responsibility is the Service Provider's.

14. Confidentiality Obligation

The Client and the Service Provider shall each keep confidential all Confidential Information disclosed by the other in connection with this Agreement and shall use such Confidential Information solely for the performance or enjoyment of rights under this Agreement. Neither Party shall disclose Confidential Information to any third party except to its employees, professional advisers, auditors, or subcontractors who have a strict need to know the same and who are bound by confidentiality obligations no less protective than those contained herein, or where disclosure is required by applicable law, stock exchange regulation, or order of a competent court or authority. Each Party shall exercise at least reasonable care to protect the other Party's Confidential Information and shall, upon termination or written request, promptly return or securely destroy the Confidential Information of the other Party except to the extent retention is required by law or bona fide internal record-keeping policies.

15. Residual Knowledge

Nothing in this Agreement prevents an individual who has had access to the other Party's Confidential Information from using, in the ordinary course of that individual's work, the skill, experience and general knowledge unaided memory has retained. This Clause does not permit the use or disclosure of the other Party's Confidential Information itself, does not permit the deliberate memorisation of it for later use, does not license any intellectual property right in it, and does not apply to trade secrets, to personal data, or to anything recorded in tangible or electronic form. The confidentiality obligations in this Agreement continue to apply in full to everything outside the narrow scope of this Clause.

16. Data Processing

Where either Party collects, stores, or otherwise processes personal data of any individual (a 'Data Principal') in connection with this Agreement, that Party shall comply with the Digital Personal Data Protection Act, 2023 (the 'DPDP Act'), the Information Technology Act, 2000 and the rules thereunder, and all other applicable data-protection laws.

- 16.1 PURPOSE AND LAWFUL BASIS: personal data shall be processed only for the specific, lawful purpose for which it is collected and notified to the Data Principal, on the basis of the Data Principal's consent or another lawful basis permitted under the DPDP Act, and shall not be used for any incompatible purpose.
- 16.2 NOTICE AND MINIMISATION: each Party shall give the Data Principal a clear notice of the purpose and the data collected, shall collect only such personal data as is necessary for that purpose, and shall take reasonable steps to ensure the data is accurate and complete.
- 16.3 SECURITY SAFEGUARDS: each Party shall implement reasonable security safeguards (including access controls, encryption where appropriate, and organisational measures) to prevent personal data breaches, consistent with Section 8 of the DPDP Act and the reasonable security practices required under Section 43A of the Information Technology Act, 2000.
- 16.4 BREACH NOTIFICATION: in the event of a personal data breach, the affected Party shall notify the Data Protection Board of India and each affected Data Principal in the manner and within the timelines prescribed under the DPDP Act.
- 16.5 RETENTION: personal data shall be retained only for as long as necessary for the notified purpose or as required by law, and shall thereafter be erased, unless retention is mandated by applicable law.
- 16.6 DATA PRINCIPAL RIGHTS: each Party shall enable Data Principals to exercise their rights of access, correction, completion, updating, erasure, and grievance redressal as provided under the DPDP Act, and shall designate a contact for such requests.
- 16.7 PROCESSORS: any engagement of a Data Processor shall be under a valid contract that binds the processor to obligations no less protective than those in this clause.
- 16.8 CROSS-BORDER TRANSFER: personal data shall be transferred outside India only to the extent permitted under Section 16 of the DPDP Act and any restrictions notified by the Central Government.

Each Party shall indemnify the other against losses arising from its own breach of this clause.

17. Intellectual Property Ownership

All deliverables, work product, inventions, developments, documents, reports, source code, designs, materials, discoveries, and other intellectual property created, conceived,

authored, or reduced to practice in the course of performing this Agreement for the Client shall vest exclusively in the Client from creation, and to the extent any such rights do not automatically vest by operation of law, the Service Provider hereby irrevocably assigns, and shall procure the assignment of, all such rights to the Client. The Service Provider shall retain ownership only of pre-existing intellectual property, general know-how, and reusable tools that are not specific to the Client, but grants the Client a non-exclusive, perpetual, royalty-free licence to use any such background materials to the extent embedded in or necessary to use the deliverables.

18. Service Warranty

The Service Provider warrants that the Services and all Deliverables shall be performed with reasonable skill, care, diligence, and professional competence and shall materially conform to the scope of Services and the deliverables described in this Agreement. If any Service or Deliverable is found during the warranty period to be materially defective, incomplete, non-conforming, or not in accordance with this Agreement, the Service Provider shall, at its own cost and within a commercially reasonable time, correct, re-perform, update, or replace the affected Service or Deliverable. The warranty period for this clause shall be ninety (90) days from delivery or acceptance.

19. Representations and Warranties

Each Party represents and warrants to the other Party, as at the date of this Agreement, that:

- 19.1 It is duly incorporated, registered, or otherwise validly constituted under the laws of India, and is validly existing and in good standing.
- 19.2 It has full power and authority to enter into this Agreement and to perform the obligations undertaken by it, and has taken all corporate, partnership, or other internal action required to authorise its execution and performance.
- 19.3 This Agreement has been duly executed by a person authorised to bind it, and constitutes its legal, valid, and binding obligation, enforceable against it in accordance with its terms.
- 19.4 Its execution and performance of this Agreement does not and will not breach its constitutional documents, any judgment or order binding on it, or any agreement to which it is a party.
- 19.5 Every consent, approval, licence, registration, and authorisation required for it to enter into and perform this Agreement has been obtained and is in force.
- 19.6 No insolvency, winding-up, or similar proceeding has been commenced or, so far as it is aware, threatened against it.

These representations and warranties are given on the date of this Agreement and are deemed repeated on each date on which an obligation falls due under this Agreement, by reference to the facts then subsisting.

20. Compliance with Law

Each Party shall, in performing its obligations under this Agreement, comply with all Applicable Law, and shall obtain and maintain at its own cost every registration, licence, permission, consent, and approval necessary for it to perform those obligations lawfully.

20.1 Neither Party shall offer, promise, give, request, or accept any undue advantage, whether directly or through a third party, in order to obtain or retain business or any improper advantage, and each Party shall comply with the Prevention of Corruption Act, 1988 and with any other anti-bribery legislation applicable to it.

20.2 Each Party shall comply with the applicable tax, labour, environmental, and data protection legislation in force from time to time, including the Digital Personal Data Protection Act, 2023 where personal data is processed under this Agreement.

20.3 Each Party shall promptly notify the other if it becomes aware of any circumstance that would make performance of this Agreement unlawful, or that would place the other Party in breach of Applicable Law.

20.4 A Party shall not be required to do anything under this Agreement that would cause it to breach Applicable Law, and shall consult with the other Party in good faith to agree a lawful alternative before treating performance as excused.

21. Audit, Information and Escalation

Each Party shall keep true and complete records of its performance under this Agreement, and shall preserve them for the period a law in force requires or for three (3) years from the end of the financial year to which they relate, whichever is longer. Audit rights shall operate as follows: Client may audit service records and invoice backup once per quarter on five business days notice. Operational escalation shall follow this mechanism before formal remedies are invoked where commercially reasonable: Account managers first, then a senior officer of each party. Where this Agreement confers a right of audit, of information, or an escalation route, that right is exercised on reasonable prior written notice, during normal business hours, and without unreasonable disruption to the other Party's business. A Party exercising such a right shall treat what it learns as confidential information under this Agreement, and shall bear its own costs unless the audit discloses a material discrepancy, in which case the audited Party shall bear the reasonable cost of the audit and shall correct the discrepancy within thirty (30) days.

22. Governance and Escalation

Each Party shall appoint a representative who is the principal point of contact for the Services and who has authority to take day-to-day decisions on that Party's behalf, and shall notify the other in writing of any change. The representatives shall meet at least once a quarter to review performance, changes and any matter either Party raises. A matter the representatives cannot resolve within fifteen (15) days shall be referred to a senior officer of each Party, who shall meet within a further fifteen (15) days. Decisions of the representatives bind the Parties only where recorded in writing and signed by both; nothing said at a meeting varies this Agreement unless it is recorded as an amendment.

This Clause does not prevent either Party from seeking urgent interim relief, from referring a dispute to arbitration once the escalation periods have expired, or from exercising a right of termination that has accrued.

23. Indemnity

Each Party (the "Indemnifying Party") shall indemnify, defend, and hold harmless the other Party and its directors, officers, employees, and authorised representatives (each an "Indemnified Party") from and against any loss, liability, cost, or expense arising from that Party's breach of this Agreement, breach of confidentiality, infringement or misappropriation of intellectual property rights, negligence, wilful misconduct, or any related third-party claim. The conduct of any claim to which this indemnity applies shall be governed as follows:

- 23.1 The Indemnified Party shall notify the Indemnifying Party in writing as soon as reasonably practicable after becoming aware of a claim for which indemnity is sought, giving reasonable particulars of the claim; a delay in giving notice shall reduce the Indemnifying Party's liability only to the extent it is actually prejudiced by that delay.
- 23.2 The Indemnifying Party may, on written notice, assume conduct of the defence of the claim at its own cost using legal advisers reasonably acceptable to the Indemnified Party, and the Indemnified Party shall provide reasonable cooperation, access to relevant records, and assistance at the Indemnifying Party's cost.
- 23.3 The Indemnifying Party shall not settle or compromise a claim on terms that impose a non-indemnified liability, an admission of wrongdoing, or an ongoing restriction on the Indemnified Party without that Party's prior written consent, and the Indemnified Party shall not settle or compromise a claim without prior consultation with the Indemnifying Party except where urgent action is reasonably required to mitigate loss.
- 23.4 The Indemnified Party shall take reasonable steps to mitigate its loss, and the indemnity shall not extend to loss to the extent caused or increased by the Indemnified Party's own breach, negligence, or failure to mitigate.
- 23.5 Recovery under this indemnity shall be reduced by any amount actually recovered by the Indemnified Party from insurance or from a third party in respect of the same loss, so that the Indemnified Party is not compensated twice for the same loss.

24. Limitation of Liability

Subject to the carve-outs below, the aggregate liability of either Party under or in connection with this Agreement, whether arising in contract, tort (including negligence), breach of statutory duty, restitution, or otherwise, shall not exceed the aggregate fees paid or payable under this Agreement during the twelve (12) months preceding the event giving rise to the claim, which on the consideration and term recorded in this Agreement the Parties presently estimate at approximately Rs. 1,66,667 (Rupees One Lakh Sixty Six Thousand Six Hundred Sixty Seven Only).

- 24.1 Neither Party shall be liable for indirect, incidental, special, punitive, exemplary, or consequential loss, or for loss of profits, loss of anticipated savings, loss of opportunity, loss of goodwill, or loss of business, in each case whether or not that loss was foreseeable at the date of this Agreement.
- 24.2 The limitations and exclusions in this clause shall not apply to liability arising from fraud or fraudulent misrepresentation, wilful misconduct, breach of the confidentiality provisions of this Agreement, deliberate infringement or misappropriation of intellectual property rights, a Party's payment obligations in respect of amounts properly due, or any liability which cannot lawfully be excluded or limited.
- 24.3 The cap in this clause applies to the aggregate of all claims taken together and not to each claim separately, and each Party's liability shall be reduced to the extent that the loss was caused or contributed to by the other Party's own breach, negligence, or failure to mitigate.
- 24.4 The Parties confirm that the allocation of risk recorded in this clause is a genuine and reasonable commercial apportionment, negotiated in light of the consideration payable under this Agreement, and that each Party has had the opportunity to price and insure the risk it bears.

25. Conduct of Indemnified Claims

Where a Party entitled to be indemnified under this Agreement becomes aware of a claim for which it may seek indemnity, it shall notify the indemnifying Party in writing as soon as reasonably practicable, giving the particulars then known to it, and shall give the indemnifying Party such assistance in the defence as it reasonably requests, at the indemnifying Party's cost. The indemnifying Party may take over the conduct of the defence by written notice, and shall then conduct it diligently and keep the indemnified Party informed; the indemnified Party may participate at its own cost through advisers of its own choosing. If the indemnifying Party does not take over the defence within a reasonable time, the indemnified Party may defend the claim as it thinks fit and recover the cost of doing so. Neither Party shall admit liability, settle or compromise a claim without the other's written consent, which shall not be unreasonably withheld, and no settlement shall be made that does not release the indemnified Party unconditionally. The indemnified Party shall take the steps the indemnifying Party reasonably requires to mitigate the loss, and shall account to the indemnifying Party for any recovery it makes in respect of the same loss. A delay in notification does not defeat the indemnity except to the extent the indemnifying Party is actually prejudiced by it.

26. Insurance

Each Party shall, throughout the Term and for so long afterwards as any liability may arise out of this Agreement, maintain with a reputable insurer registered with the Insurance Regulatory and Development Authority of India insurance cover of a type and amount that a prudent person carrying on the same business would maintain, having regard to the nature and value of the obligations undertaken under this Agreement.

- 26.1 The cover shall include, to the extent relevant to that Party's obligations, commercial general liability, professional indemnity or errors-and-omissions cover, cover in respect of loss of or damage to the other Party's property in that Party's custody or control, and employer's liability and workmen's compensation cover in respect of its own personnel.
- 26.2 Each Party shall on written request produce a certificate of insurance or a broker's letter evidencing the cover in force, and shall notify the other Party promptly if the cover is cancelled, is not renewed, or is materially reduced.
- 26.3 Maintaining insurance shall not limit, satisfy, or otherwise affect a Party's liability or indemnity obligations under this Agreement, and a Party shall not be relieved of any obligation to the extent its insurer declines or disputes a claim.
- 26.4 Each Party shall bear its own policy excess or deductible in respect of a claim arising from its own acts or omissions.

27. Service Expenses

Except as expressly approved in writing in advance by the Client, all out-of-pocket, travel, accommodation, communication, and incidental expenses incurred by the Service Provider in performing the Services shall be borne solely by the Service Provider. Where an expense is approved in advance, the following shall apply:

- 27.1 A claim for reimbursement shall be made within thirty (30) days of the expense being incurred, supported by the original invoice or receipt and a short statement of the purpose for which it was incurred.
- 27.2 The Client shall pay an approved claim within thirty (30) days of receiving it, together with the next payment falling due under this Agreement where that is more convenient.
- 27.3 Where the expense attracts GST and the Service Provider is registered, the claim shall be raised as a GST-compliant tax invoice so that input credit is not lost.
- 27.4 Expenses of a personal nature, fines and penalties, and any cost arising from the Service Provider's own delay, breach, or failure to obtain approval are not reimbursable.
- 27.5 The Client may decline a claim that was not approved in advance where approval was required, and shall give reasons in writing for doing so.

28. Term of Agreement

This Agreement shall commence on 1 September 2026 (the "Effective Date") and, unless terminated earlier in accordance with this Agreement, shall remain in force for 36 months from the Effective Date. Upon expiry of the initial term of 36 months, this Agreement shall expire unless the Parties expressly agree in writing to renew or extend it.

29. Force Majeure

Neither Party shall be liable for any failure or delay in performing its obligations under this Agreement to the extent that the failure or delay is caused by a Force Majeure Event, provided that the affected Party complies with this clause. An obligation to pay an amount already due and payable shall not be excused by a Force Majeure Event.

29.1 The affected Party shall notify the other Party in writing within seven (7) days of becoming aware of the Force Majeure Event, describing the event, the obligations affected, and its anticipated duration, and shall keep the other Party reasonably informed of material developments.

29.2 The affected Party's obligations shall be suspended for so long as the Force Majeure Event continues, and the time for performance shall be extended by the period of suspension.

29.3 The affected Party shall use reasonable endeavours to mitigate the effect of the Force Majeure Event and to resume full performance as soon as reasonably practicable, and shall notify the other Party promptly upon the event ceasing.

29.4 If a Force Majeure Event continues for a continuous period exceeding sixty (60) days, either Party may terminate this Agreement by written notice to the other, without liability except in respect of obligations accrued before the date of termination.

30. Termination

This Agreement may be terminated:

30.1 By either Client or Service Provider for convenience upon 30 days' prior written notice to the other Party.

30.2 By either Party with immediate effect if the other Party commits a material breach of this Agreement and, where such breach is capable of remedy, fails to cure it within 15 days after receipt of written notice requiring the same to be remedied.

30.3 By either Party with immediate effect if the other Party becomes insolvent, is wound up, enters into a composition with creditors, or ceases to carry on business.

Upon termination or expiry, each Party shall remain liable for accrued payment obligations and for all obligations which by their nature are intended to survive, including confidentiality, ownership of intellectual property, indemnity, limitation of liability, dispute resolution, governing law and jurisdiction, notices, and any accrued rights or remedies. Upon termination:

30.4 The Client shall pay all undisputed fees accrued up to the date of termination.

30.5 The Service Provider shall deliver all work product, work-in-progress, and data to the Client.

30.6 Both Parties shall return or securely destroy all Confidential Information of the other Party.

31. Termination for Convenience

Either Party may terminate this Agreement at any time, without cause, by giving the other Party not less than thirty (30) days' prior written notice. Upon such termination, the Client shall pay the Service Provider for all Services satisfactorily rendered up to the effective date of termination, together with any non-cancellable costs reasonably incurred. Neither Party shall be liable to the other for damages, compensation, or loss of anticipated profits solely by reason of termination for convenience exercised in accordance with this clause.

32. Survival

Expiry or termination of this Agreement shall not affect any right, remedy, obligation, or liability of a Party that has accrued as at the date of expiry or termination, and shall not affect the coming into force or the continuance in force of any provision which is expressly, or by implication, intended to come into force or to continue in force on or after that date. Without limiting the generality of the foregoing, the provisions of this Agreement relating to confidentiality, ownership of intellectual property, indemnity, limitation of liability, dispute resolution, governing law and jurisdiction, notices, and this clause shall survive expiry or termination and shall continue to bind the Parties.

33. Notices

Any notice, consent, approval, demand, or other communication required or permitted under this Agreement shall be in writing in the English language and shall be sent to the address, or the electronic mail address, last notified in writing by the recipient Party for the purpose of receiving notices under this Agreement. A communication shall be deemed to have been received as follows:

- 33.1 If delivered by hand, on the date of delivery where delivered on a Business Day before 5:00 p.m. Local time, and otherwise on the next Business Day.
- 33.2 If sent by registered post or speed post with acknowledgement due, on the date recorded on the acknowledgement or on the fifth (5th) Business Day after posting, whichever is earlier.
- 33.3 If sent by a reputed courier service, on the second (2nd) Business Day after the date of dispatch.
- 33.4 If sent by electronic mail to the address notified for that purpose, on the date of transmission where sent on a Business Day before 5:00 p.m. Local time and no delivery-failure notification is received, and otherwise on the next Business Day.

A Party changing its address or electronic mail address for notices shall give the other Party not less than seven (7) days' prior written notice of the change, and until that notice is given a communication sent to the last notified address shall be validly given.

34. Assignment

Neither Party shall assign, transfer, charge, subcontract, or otherwise deal with all or any of its rights or obligations under this Agreement without the prior written consent of the

other Party, such consent not to be unreasonably withheld or delayed.

34.1 A Party may, on written notice to the other Party, assign or novate this Agreement to an Affiliate, or to a successor in title to substantially the whole of the business or assets to which this Agreement relates, provided that the assignee agrees in writing to be bound by this Agreement.

34.2 Any purported assignment, transfer, or charge in breach of this clause shall be void and of no effect.

34.3 This Agreement shall be binding on, and shall enure for the benefit of, each Party and its permitted successors and assigns.

35. Amendment

No amendment, variation, or modification of this Agreement shall be valid or binding unless it is recorded in writing, expressly refers to this Agreement, and is signed by or on behalf of each Party by a person duly authorised for that purpose. No course of dealing between the Parties, exchange of correspondence, or oral assurance shall operate to vary this Agreement. Where an amendment attracts stamp duty or compulsory registration under Applicable Law, that amendment shall be duly stamped and, where required, registered before either Party relies upon it.

36. Waiver

No failure, delay, or indulgence by a Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver of that right, power, or remedy, nor shall any single or partial exercise of it preclude any further exercise of that or any other right, power, or remedy. A waiver of any right, power, or remedy under this Agreement is effective only if it is given in writing and signed by or on behalf of the waiving Party, and shall not be treated as a waiver of any subsequent breach or default. The rights and remedies provided under this Agreement are cumulative and are not exclusive of any rights or remedies available under Applicable Law.

37. Severability

If any provision or part-provision of this Agreement is or becomes invalid, illegal, or unenforceable under Applicable Law, it shall be deemed modified to the minimum extent necessary to make it valid, legal, and enforceable, and if such modification is not possible, the provision or part-provision concerned shall be deemed deleted. Any modification to, or deletion of, a provision or part-provision under this clause shall not affect the validity and enforceability of the remainder of this Agreement, which shall continue in full force and effect. Where a provision is modified or deleted under this clause, the Parties shall negotiate in good faith to substitute a valid and enforceable provision that achieves, so far as possible, the commercial result originally intended.

38. Entire Agreement

This Agreement, together with its schedules and annexures, constitutes the entire agreement between the Parties in relation to its subject matter and supersedes all prior agreements, arrangements, understandings, term sheets, proposals, quotations, and representations, whether written or oral, relating to that subject matter.

38.1 Each Party acknowledges that in entering into this Agreement it does not rely on, and shall have no remedy in respect of, any statement, representation, assurance, or warranty that is not expressly set out in this Agreement.

38.2 Nothing in this clause shall exclude or limit any liability for fraud or fraudulent misrepresentation, or operate to exclude any term implied by Applicable Law which cannot lawfully be excluded.

38.3 Where any purchase order, invoice, acknowledgement, portal terms, or other standard-form document issued by either Party contains terms inconsistent with this Agreement, the terms of this Agreement shall prevail unless the Parties expressly agree otherwise in a written amendment executed in accordance with this Agreement.

39. Further Assurance

Each Party shall, at the reasonable request and cost of the requesting Party, promptly execute and deliver such further documents, instruments, declarations, forms, and writings, and do or procure to be done all such further acts and things, as may be reasonably necessary or expedient to give full force and effect to this Agreement and to perfect, record, or protect the rights, title, interests, and obligations created or intended to be created under it, including any filings, registrations, or intimations required to be made before any statutory or regulatory authority.

40. Dispute Resolution Mechanism

Any dispute, controversy, or claim arising out of or in connection with this Agreement shall first be attempted to be resolved amicably between the Parties. If the dispute remains unresolved within fifteen (15) days of written notice, it shall be referred to arbitration in accordance with the Arbitration and Conciliation Act, 1996. The arbitration shall be conducted by a sole arbitrator jointly appointed by the Parties and, failing agreement within fifteen (15) days of a written request, the arbitrator shall be appointed in accordance with the Arbitration and Conciliation Act, 1996. The arbitration shall be conducted on the following terms:

40.1 The seat of arbitration shall be Pune, Maharashtra, and the courts at Pune, Maharashtra shall have exclusive supervisory jurisdiction over the arbitration.

40.2 Hearings may be held at Pune, Maharashtra or, where the arbitrator so directs or the Parties agree, by video conference.

40.3 The arbitral tribunal shall consist of a sole arbitrator, and the proceedings and the award shall be in the English language.

- 40.4 The award shall be in writing, shall state the reasons on which it is based, and shall be final and binding on the Parties.
- 40.5 The arbitrator shall determine the costs of the arbitration, including the fees and expenses of the arbitrator and the reasonable legal costs of the Parties, in accordance with Section 31A of the Arbitration and Conciliation Act, 1996.
- 40.6 Nothing in this clause prevents a Party from applying to a competent court for interim measures of protection under Section 9 of the Arbitration and Conciliation Act, 1996, before or during the arbitral proceedings.

41. Governing Law and Jurisdiction

This Agreement, and any dispute or claim arising out of or in connection with it, its subject matter or its formation (including non-contractual disputes or claims), shall be governed by and construed in accordance with the laws of India, and where local procedural, registration, or stamp matters are relevant, as applied in the State of Maharashtra.

- 41.1 Subject to the dispute resolution provisions of this Agreement, the competent courts at Pune, Maharashtra shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement, and each Party irrevocably submits to that jurisdiction.
- 41.2 Each Party waives any objection to that forum on the ground of inconvenient forum or that proceedings have been brought in an inappropriate court.
- 41.3 The rules of private international law shall not apply to the extent they would result in the application of the law of any jurisdiction other than India.
- 41.4 Nothing in this clause shall prevent either Party from applying to any court of competent jurisdiction for interim or protective relief, including injunctive relief, to preserve its rights pending resolution of the dispute.

42. Counterparts and Electronic Execution

This Agreement may be executed in any number of counterparts, each of which when executed and delivered shall constitute an original, and all counterparts taken together shall constitute one and the same instrument. A Party may enter into this Agreement by executing a counterpart and delivering it by electronic mail in portable document format, or by affixing an electronic signature to it. The Parties acknowledge that, under Section 5 of the Information Technology Act, 2000, an electronic signature affixed in the prescribed manner satisfies a requirement of law that information be authenticated by signature, save in respect of the classes of document excluded by the First Schedule to that Act; and where this Agreement or any amendment to it falls within that Schedule, it shall be executed as a physical instrument bearing wet-ink signatures.

43. Stamp Duty, Registration and Costs

This Agreement shall be stamped with non-judicial stamp duty of the value payable under the Maharashtra Stamp Act, 1958, and shall be stamped before or at the time of

execution.

Unless otherwise expressly agreed in writing, the stamp duty, registration fees where registration is required under applicable law, and all incidental charges payable in respect of this Agreement shall be borne equally by the Parties, and each Party shall bear its own legal, professional, and advisory costs.

The Parties acknowledge that an instrument which is not duly stamped is inadmissible in evidence until the deficiency in duty, together with any penalty, is made good in accordance with the applicable stamp legislation.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement on the day and year first above written.

For and on behalf of Ashwin Traders Private Limited

Authorized Signatory

Name: _____

Designation: _____

Date: _____

For and on behalf of Kesari Systems LLP

Authorized Signatory

Name: _____

Designation: _____

Date: _____

ASSUMPTIONS AND OPEN POINTS

This section is not part of the agreement between the parties. It records what was assumed in drafting and what has not been settled, so that both can be dealt with before signing.

1. [DRAFTING DEFAULT] This agreement is drafted as the whole of what was agreed, so earlier emails and conversations do not form part of it. If something discussed elsewhere was meant to be binding, write it in.